

Tentative Rulings for June 9, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2400948	MARQUEZ VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES BY JORGE C. MARQUEZ, LORENA P. MARQUEZ

Tentative Ruling: GM first argues, citing *Hatlevig v. General Motors, LLC* (2026) 118 Cal.App.5th 644, that Plaintiffs' motion is untimely because it was filed 219 days after the case settled. (Opposition, p. 4:9-27.)

In *Hatlevig*, another lemon law case, the parties settled the case and notified the court of the settlement at a trial readiness conference on June 2, 2023, at which time, the court ordered that a dismissal be filed within 45 days. (*Hatlevig, supra*, 118 Cal.App.5th at 646.) On July 11, 2023, the clerk sent a notice of dismissal to the parties stating that the case would be deemed dismissed on August 15, 2023 unless a judgment or dismissal was filed, or a party made a showing of good cause as to why it should not be dismissed. (*Id.* at 647.) No judgment or dismissal was filed, and no showing of good cause was made. Then, the plaintiff filed a motion for attorney's fees on August 31, 2023, which she served on the defendant on April 4, 2024, with a hearing date of April 26, 2024. The defendant argued the motion was untimely, and the court agreed. (*Ibid.*)

The court discussed the rules for determining the deadline for a motion for attorney's fees, then stated:

We must next determine the date of dismissal. With exceptions not relevant to this case, when a case settles the plaintiff must serve and file a request for dismissal of the entire case within 45 days. ... If the plaintiff does not do so, the court must dismiss the case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed. ... On June 2, 2023, Hatlevig's counsel notified the trial court the case had settled, and the court ordered a dismissal filed within 45 days. Apparently to satisfy due process requirements, the clerk later mailed the parties notice the case would be deemed dismissed without prejudice on August 15, 2023, unless a dismissal was filed or a party showed good cause why the case should not be dismissed. (See *Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 510, 33 Cal.Rptr.2d 572 [due process requires notice to parties before court may dismiss case 45 days after receiving notice of settlement].) That date came and went, but no dismissal was filed and no good cause was shown why the case should not be dismissed. When a case settles, a dismissal of the action generally follows as a matter of law. ... Hence, consistent with the notice of dismissal, the case was dismissed without prejudice on August 15, 2023.

(*Hatlevig, supra*, 118 Cal.App.5th at 649-650 [internal quotations and citations omitted].)

In the present case, the case settled, and the Court was notified of the settlement, on August 27, 2025. The same day, the Court set an OSC re: dismissal after conditional settlement for April 13, 2026, and notified the parties of such. On March 16, 2026, prior to the date set for the OSC, Plaintiffs filed a request for dismissal, and the case was

dismissed. Plaintiffs then filed this motion on April 3, 2026, 17 days later. Unlike in *Hatlevig*, the Court did not notify the parties that the case would be dismissed on a date certain unless there was a showing of good cause. Such notice was required for due process. (See, *Hatlevig*, *supra*, 118 Cal.App.5th at 649; *Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 510.) Instead, here the Court set an OSC re: dismissal, and Plaintiffs filed a dismissal prior to that date. As Plaintiffs filed their motion for attorney's fees within 60 days of the dismissal, their motion is timely. (See, CRC 3.1702(b), 8.104(1)(a).)

Plaintiffs argue that the Court should refuse to consider portions of the opposition because they are single-spaced in violation of CRC 2.108 and 3.113. (Reply, pp. 1:28-2:9.) While Plaintiffs are correct that portions of the opposition are single-spaced, these portions appear to be formatted in this manner to highlight GM's objections to specific billing items, and doing so is not sufficient grounds for disregarding the opposition. Further, while the court may treat a non-compliant opposition in the same manner as a later-filed paper [CRC 3.1113(g)], the Court has discretion to consider an untimely opposition. (See, CRC 3.1300(d); *Slayton v. Superior Court* (2006) 146 Cal.App.4th 55, 58, n. 2; *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29.) Additionally, challenging a motion or opposition on the merits rather than only objecting to its procedural inadequacies may constitute a waiver of any objection thereto. (See, *Clark v. Stabond Corp.* (1987) 197 Cal.App.3d 50, 59.)

Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (*Ibid.*) There is no dispute that Plaintiffs are the prevailing party in this case.

The matter of reasonableness of a party’s attorney’s fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Under the Song Beverly Act, “[a] trial court may not rubberstamp a request for attorney fees, but must determine the number of hours reasonably expended.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.) The court must determine whether the amount requested is reasonable based on the circumstances of the case, including factors such as the complexity of the case, procedural demands, skill exhibited, and results achieved, and the court may reduce the amount if it is determined to be unreasonable. (*Goglin v. BMW of North America* (2016) 4 Cal.App.5th 463, 470; see also, *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096 [factors considered in determining the reasonableness of a party’s attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure].)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242; see also, *Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Ibid.*; see also, *Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.) The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The experienced trial judge is the best judge of the value of professional services rendered in his or her court and may make his or her own

determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Id.* at 1096.)

The prevailing buyer in a Song Beverly Act action has the initial burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Once the initial burden is met, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours, the hourly rate, or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

In the present case, Plaintiffs' counsel's billing records indicate a lodestar figure of \$48,838 (\$26,035 from Norman Taylor & Associates ("NTA") and \$22,803 from Wirtz Law APC ("WL")). (See, Decl. of Norman F. Taylor iso Reply ["Taylor Decl."], Ex. 1; Decl. of Richard M. Wirtz ["Wirtz Decl."], Ex. 1.)

The hourly rates for Plaintiff's counsel are as follows: Amy Rotman (WL), \$600/hour; Jessica Underwood (WL), \$600/hour; Norman F. Taylor (NTA), \$645/hour; Susanna Gonzales-McCaulley (WL), \$450/hour; Iris A. Diaz (WL), \$450/hour. The hourly rates for the paralegals are as follows: Rebecca Evans (WL), \$300/hour; Dalia Zaki (WL), \$250/hour; Citlali Sanchez (WL), \$250/hour; Katelynn Cespedes (WL), \$250/hour; Nick McNaughton (NTA), \$300/hour; and Lusine Musat (NTA), \$300/hour. While GM does not attack counsel's hourly rates, many of the hourly rates set forth above are not reasonable for Riverside County, especially for a simple lemon law case, and the Court must determine whether counsel's rates are reasonable. (See, *EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [the court may rely on its own experience in determining whether the hourly rate sought or hours spent in the matter are reasonable].) Plaintiff made no showing that he could not obtain local counsel, and therefore, is entitled to out-of-town rates. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615-619 [plaintiffs were entitled to Santa Monica rates for counsel when they proved they could not obtain local counsel].) Accordingly, the Court is reducing the billing rates as follows: Underwood, from \$600 to \$550/hour; Rotman, from \$600 to \$550/hour; Taylor, from \$645 to \$550/hour; and all paralegal rates should be reduced to \$200/hour. Applying the new rates to the billed hours results in a reduction of **\$6,458** from the lodestar identified by Plaintiff (\$4,243 from Norman Taylor and Associates and \$2,215 from Wirtz Law. This results in a reduced fee award of **\$42,230** (\$48,688-\$6,458).

In addition, GM makes specific challenges to various items as well taken. First, NTA improperly billed 6.9 hours on clerical tasks, which results in a reduction of **\$2,010** (5.1 hours x \$200/hour + 1.8 hours x \$550/hour). Additionally, based on the billing records provided by Plaintiff's counsel, the counsels' utilization of various forms and canned motions did not result in the significant savings it should have.

Based upon GM's specific challenges to the billing records, the following are adjusted:

Work	Hours billed	New Reduced Hours	Hourly Rate	Reduction
Review and respond to discovery	10.8 (NTA)	6.0	\$550	\$2,640
Drafting template discovery to 2 defendants	9.9 (NTA)	5.0	\$550	\$2,695
Draft template meet and confer letter	0.9 (WL)	0.5	\$450	\$180
Draft motion to compel PMQ deposition	5.0 (WL)	3.0	\$450	\$900
Draft motion to compel compliance with third party subpoena	5.6 (WL)	3.0	\$450	\$1,170
			Total:	\$7,585

Accordingly, the total stated lodestar is discounted by \$16,053, which results in a reduced fee award of **\$32,785 (\$48,688-[\$7,585+\$2,010+\$6,458])**.

As to the request for a multiplier, the purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) In the present case, there is no reason for an enhancement. This was not a complicated case, there was no exceptional quality of work, and the alleged risk due to counsel's contingency fee should already be accounted for in counsel's hourly rate.

Plaintiff's Motion for Attorney's Fees GRANTED in part.

\$21,570 is awarded to Wirtz Law + \$11,215 is awarded to Norman Taylor and Associates for a total award of \$32,785 for fees.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2400948	MARQUEZ VS GENERAL MOTORS, LLC	MOTION TO TAX COSTS GENERAL MOTORS, LLC

Tentative Ruling: Plaintiffs argue that because the motion does not include a notice of motion, it is defective pursuant to CRC 3.1110 and 3.1112, and should therefore be denied. CRC 3.1110(a) states that "[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order,"

and must include the date, time, and location of the hearing, the nature of the motion, the date the action was filed, and the trial date, if set. CRC 3.1112 states that any moving papers must contain a notice of the hearing, the motion, and a memorandum in support of the motion. While Plaintiffs are correct that GM did not include a separate notice of this motion, the motion itself describes the nature and grounds for the relief sought; provides the date, time, and location of the hearing; and includes a memorandum supporting the motion.

Under C.C.P. §1032(b), unless otherwise provided, “a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” C.C.P. § 1033.5(a) contains a list of items specifically allowed as recoverable costs, and § 1033.5(b) contains a list of items that “are not allowable as costs, except when expressly authorized by law.” An item neither specifically allowable under subdivision (a) nor prohibited under subdivision (b) may be allowed or denied in the discretion of the court if certain requirements are satisfied. (C.C.P. § 1033.5(c)(4).) In particular, the item “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “shall be reasonable in amount.” (C.C.P. § 1033.5(c)(2) and (3).) Objection to any item or items on the cost memorandum may be made by filing and serving a noticed motion to tax cost. (C.C.P. § 1034; CRC 3.1700 (b)(1).)

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) “A verified memorandum of costs is prima facie evidence of their propriety,” and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) If the items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs. (*Ladas, supra*, 19 Cal.App.4th at 774.)

GM objects to the \$60 filing fee for Plaintiffs’ motion for attorney’s fees, arguing that no such motion has been filed. However, Plaintiffs filed their motion for attorney’s fees on April 3, 2026, and provide evidence they incurred the filing fee for that motion. (Decl. of Amy R. Rotman [“Rotman Decl.”] at ¶ 5, Ex. 2.)

GM argues that the fees sought by Plaintiffs for service of a subpoena on Allen Gwynn Chevrolet and a witness fee for responding because such fees incurred related to a non-party dealer were unnecessary. Plaintiffs present evidence that the amounts were actually incurred, and that the subpoena sought documents relevant to Plaintiffs’ claims. (Rotman Decl. at ¶¶ 6-8, Exs. 3-5.) Accordingly, Plaintiffs have established that this is a recoverable cost.

GM objects to the \$625 sought by Plaintiffs as court reporter fees for a hearing on their motion for attorney’s fees on the ground that there has been no hearing, so such fees were not incurred. In response, Plaintiffs provide an invoice from a different case for a court reporter they hired to report a motion for attorney’s fees. (Rotman Decl. at ¶ 9, Ex. 6.) However, they present no evidence this is a cost actually and reasonably incurred in the present case.

GM moves to tax the electronic filing fees sought by Plaintiffs totaling \$651.26 (\$468 from Witz Law and \$183.26 from Norman Taylor & Associates), arguing they were not reasonable and necessary. Pursuant to C.C.P. § 1033.5(a)(14), “[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents” are recoverable.

Pursuant to Local Rule 3118, this court requires that “parties represented by counsel must file documents electronically” in all limited and unlimited civil actions. Thus, Plaintiffs’ electronic filing fees are recoverable. However, the invoices provided by Plaintiffs to support the recovery of these fees show that \$180 of these fees were for filing fees, already recovered elsewhere. (See, Rotman Decl. at ¶ 5, Ex. 7.) Additionally, \$194.45 was incurred not for electronic filing, but for “Info Track Fees” [*ibid.*], which are not automatically recoverable. As Plaintiffs provide no evidence showing how these fees were reasonably necessary to the litigation, they fail to establish they are recoverable.

GM also challenges the \$150 in jury fees paid by Plaintiffs. Jury fees are proper on their face. (See C.C.P. § 1033.5(a)(1).) Although the present case did not go to trial, Plaintiffs were required to pay the jury fees in order to preserve the right to a jury trial in event the case did not settle. The jury fee must be paid on or before the date scheduled for the initial case management conference. (C.C.P. § 631(c).)

Fees for legal research are not recoverable under California law absent an agreement of the parties or statutory authority. (*Ladas, supra*, 19 Cal.App.4th at 776.) Such costs are part of attorney overhead and are not recoverable. Further, Plaintiffs fail to show that these fees were reasonable and necessary to the litigation.

Finally, GM challenges the \$680 sought by Plaintiffs for mediation fees. However, mediation fees are recoverable in the court’s discretion. (*Anthony v. Li* (2020) 47 Cal.App.5th 816, 824; C.C.P. 1033.5 (c)(4).) As Plaintiffs presents evidence those fees were incurred [Rotman Decl., Ex. 8], they are recoverable.

Defendant’s Motion to Tax Costs GRANTED in part.

The following the reductions in costs: \$374.45 electronic fees + \$625 court reporter fees + \$49.43 legal research for a total tax of \$1,048.88.

Costs awarded to Plaintiff in the amount of \$3,177.83 (\$4,226.71-1,048.88).

3.

CASE #	CASE NAME	HEARING NAME
CVPS2502070	VAN WINKLE VS COHEN	MOTION FOR SUMMARY JUDGMENT ON 1ST AMENDED COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF ADRIAN VAN WINKLE BY MELISSA COHEN

Tentative Ruling: No tentative ruling. Motion is continued to 9.01.26.

If the opposing party shows by declaration that essential evidence “may exist but cannot, for reasons stated, be presented, the court shall deny the motion” or continue it for a reasonable period, or “make any other order as may be just.” (CCP § 437c(h); see *Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 395.) Thus, a continuance (normally a matter within the court’s discretion) is “virtually mandated” where the nonmoving party makes the requisite showing. The party need not show that essential evidence *does* exist, but only that it *may* exist. (*Dee v. Vintage Petroleum, Inc.* (2003) 106 CA4th 30, 34 (emphasis added).) To be entitled to a continuance, the party opposing the motion for

summary judgment must show that its proposed discovery will lead to facts essential to justify opposition. (*Scott v. CIBA Vision Corp.* (1995) 38 Cal.App.4th 307, 325-326.)

The opposing party's declaration in support of a motion to continue the hearing should show facts establishing a likelihood that controverting evidence may exist and why the information sought is essential to opposing the motion; the specific reasons why such evidence cannot be presented at the present time; an estimate of the time necessary to obtain such evidence; and the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (CCP §437c(h); see *Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, 420.)

Plaintiff provides the declaration of Attorney Samuel Hopkins. Hopkins asserts the outstanding discovery is directly relevant to the issues of whether Defendant had actual or constructive knowledge of dangerous conditions at the property, whether prior incidents or law enforcement activity made the subject shooting foreseeable, whether Defendant had the ability to take reasonable measures in response to conditions at the property, and whether Defendant acted reasonably. (Hopkins Decl. ¶¶11.) Hopkins states: "The less-redacted/unredacted law enforcement records, additional firearm-related records, and witness testimony are expected to yield evidence directly bearing on Defendant's claim that she lacked knowledge of any prior issues at the property." (Hopkins Decl. ¶¶11.) Hopkins contends Plaintiff has acted diligently in pursuing discovery, including propounding written discovery, obtaining the police records, requesting unredacted versions of those records, contacting the Sheriff's Department regarding the November 3, 2023 firearm-related event, and noticing Defendant's deposition. (Hopkins Decl. ¶¶13.) Hopkins does not provide an estimate of the time necessary to obtain all of the outstanding evidence but has provided the Notice of Defendant's Deposition (set for June 16, 2026) and demonstrated that Plaintiff is waiting on law enforcement to provide additional records.

Motion for Summary Judgment continued to 9.01.26 pursuant to CCP 437c(h).

Case Management Conference calendared for 6.30.26 is continued to 8.18.26. Plaintiff is directed to submit an updated Case Management Statement at least 10 days prior to the August 18th date, addressing the status of the outstanding discovery they believe is relevant to the Motion for Summary Judgment and provide a date for when that discovery will be completed if still pending at the time of submission of the Case Management Statement. Plaintiff to use pleading paper and not CM-110 for the updated statement.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507533	DOE, AN INDIVIDUAL VS MIRAGE ENDOSCOPY CENTER, LLC., A CORPORATE ENTITY	MOTION BY DEFENDANTS MIRAGE ENDOSCOPY CENTER, LLC. AND MIRAGE ENDOSCOPY CENTER, LP TO REQUIRE PLAINTIFF TO BE NAMED AND TO STRIKE PSEUDONYM BY MIRAGE ENDOSCOPY CENTER, LLC., A CORPORATE ENTITY, MIRAGE ENDOSCOPY CENTER, LP, A CORPORATE ENTITY

Tentative Ruling: The court may, upon a motion made pursuant to CCP § 435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

Motions to strike can be used to attack the entire pleading, or any part thereof, i.e., even single words or phrases. (CCP § 435; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (CCP § 437(a).) “[T]he court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged.” (*Washington Int’l Ins. Co. v. Superior Court* (1998) 62 Cal.App.4th 981, 984, fn. 2.)

CCP § 436(b) allows the court at any time in its own discretion or upon timely motion under CCP § 435 by a party, to strike a part of the pleading “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” This has been found to authorize “the striking of a pleading due to improprieties in its *form* or in the *procedures* pursuant to which it was filed.” (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528 [emphasis in original].) But this is “commonly invoked to challenge pleadings filed in violation of a deadline, court order, or requirement of prior leave of court.” (*Id.*) Mirage does not provide any authority establishing the right to strike the FAC based on what it argues is Plaintiff’s improper use of a pseudonym.

However, “[t]he names of all parties to a civil action must be included in the complaint.” (*Department of Fair Employment & Housing v. Superior Court* (2022) 82 Cal.App.5th 105, 109.) Due to “the inherently sensitive nature of some proceedings, statutes specifically allow for keeping certain parties’ identities confidential.” (*Id.* at 110.) “Even in the absence of a statute, anonymity for parties may be granted when necessary to preserve an important privacy interest.” (*Id.*)

When a plaintiff seeks to sue using a pseudonym, they are supposed to file their initial complaint conditionally using the pseudonym and then move for an order granting permission to proceed with the pseudonym. (*Department of Fair Employment & Housing, supra*, 82 Cal.App.5th at 111, fn. 1.) “If the request is granted, the initial pleading can remain. If pseudonym use is denied, the pleading must be amended to state the party’s

true name.” (*Ibid.*) “Before a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test: A party’s request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access.” (*Id.* at 111.)

Motion to Strike is DENIED.

An Order to Show Cause re Use of Pseudonym is scheduled for July 28th, 8:30 a.m. Plaintiff directed to submit a brief addressing the rationale for permitting use of a pseudonym by July 17th. Defendant to file a response by July 23rd. No other briefing shall be permitted.

Case Management Conference is continued to 7.28.26.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2508299	LARA-MARTINEZ VS UNIVERSAL CONSTRUCTION AND ENGINEERING, A CORPORATE ENTITY FORM UNKNOWN	MOTION TO STRIKE PORTIONS OF PLAINTIFFS FIRST AMENDED COMPLAINT

Tentative Ruling: No tentative ruling.

The hearing on the motion to strike is continued to 8.04.26. The parties are ordered to **meet and confer via in person, phone or videoconferencing** for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the motion to strike. As part of the meet and confer process, Defendant shall identify the specific language that it believes is subject to the motion and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, the parties shall 10 days before the continued hearing date set above do one of the following:

- (1) Defendant vacate the hearing on the motion to strike, and file an Answer;
- (2) The Parties file with the court a joint declaration stating the parties have agreed that Plaintiff will file an amended complaint before the date set forth above; or
- (3) The Parties file with the court a joint declaration stating the means by which the parties met and conferred and identifying the specific objections in the motion and supporting memorandum of points and authorities that the parties were unable to resolve. (CCP §430.41(a)(3), CCP §435.5(a)(3).)

The court will not accept further briefing.

Case Management Conference rescheduled from 6.09.26 to 8.04.26 to be heard with the motion.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2509590	ZONES VS BOSTON SCIENTIFIC CORPORATION	DEMURRER ON 1ST AMENDED COMPLAINT FOR PRODUCT LIABILITY (OVER \$35,000) OF CHARLES ZONES BY BOSTON SCIENTIFIC CORPORATION, BOSTON SCIENTIFIC CARDIAC DIAGNOSTIC TECHNOLOGIES, INC.

Tentative Ruling: No tentative ruling.

The hearing on the demurrer is continued to 8.06.26. Boston Scientific is ordered to ***meet and confer via in person, phone, or videoconferencing*** with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Boston Scientific shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Boston Scientific shall have 10 days before the continued hearing date set above to do one of the following:

- 1) Vacate the hearing on the demurrer, and file an Answer;
- 2) File with the court a declaration stating the parties have agreed that Plaintiff will file an amended complaint before the date set forth above; or
- 3) File with the Court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (C.C.P. § 430.41(a)(3).)

The Court will not accept further briefing.

Case Management Conference rescheduled from 6.30.26 to 8.06.26 to be heard with the motion.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2509844	CORTEZ VS CHAPMAN	MOTION TO QUASH OR MODIFY SUBPOENAS SERVED BY DEFENDANT WILLIAM CHAPMAN AND REQUEST FOR MONETARY SANCTIONS BY WENDY ALEJANDRA CORTEZ

Tentative Ruling: The court is authorized to order a subpoena be quashed, modified, or that compliance be directed, with or without limitations, on the filing of a motion. (CCP §§ 1985.3, 1985.6, and 1987.1.) A motion to quash or modify may be granted on the grounds that the matters sought to be discovered are privileged, protected, or beyond the scope of discovery. (CCP § 2017.010; *Rudnick v. Superior Court* (1974) 11 Cal.3d 924, 929.) Wendy brings this motion seeking to quash or modify five subpoenas because the documents sought are protected by his right to privacy and/or seek irrelevant information.

Based on the opposition and reply, Chapman has withdrawn the offending original set of deposition subpoenas and has reissued new ones limiting the time and scope of the subpoenas. Based on this, the motion itself is moot other than the request sanctions.

Under CCP § 1987.2(a), the Court has discretion to award sanctions, “if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena were oppressive. In the declaration of Plaintiffs’ attorney, multiple emails and a voicemail were left for defense counsel prior to the filing of the motion without any response (Declaration of Erick Palafox, ¶¶ 5-6.) Per Defendant’s attorney, the subpoenas were withdrawn approximately two weeks after the initial motion to quash was filed, with Defendant reissuing new subpoenas (that are subject to another motion to quash currently set for July 13th, 2026). (Declaration of Charmaine V. Jackson, section I.)

Sanctions in the amount of \$1,821.36 awarded (3.5 hours at \$500/hour + \$71.36 filing fee), payable in 30 days to Plaintiffs’ attorney.

Motion to Quash Amended Subpoenas and Case Management Conference confirmed for 7.13.26.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2509844	CORTEZ VS CHAPMAN	MOTION TO COMPEL

Tentative Ruling: Service of a proper deposition notice is sufficient to compel a party or the employee of a party to appear, testify, and produce records in their possession without a subpoena. (CCP §2025.280(a).) If a party deponent fails to appear or produce documents, without having serviced a valid objection under CCP § 2025.410, the party giving the notice may move for an order compelling the deponent’s attendance, testimony, and production of documents. (CCP § 2025.450(a).) Such a motion must be accompanied by a meet and confer declaration under CCP § 2016.040, or when the deponent failed to attend the deposition, a declaration stating that the moving party contacted the deponent to inquire about the nonappearance. (CCP § 2025.450(b)(2).) “Implicit in the requirement that counsel contact the deponent to inquire about the nonappearance

is a requirement that counsel listen to the reasons offered and make a good faith attempt to resolve the issue.” (*Lelo v Cornerstone Building Inspection Service* (2001) 86 Cal.App.4th 1109, 1124.)

Wendy noticed Chapman’s deposition for April 20, 2026, and was told days before the deposition that Chapman could not attend due to a scheduling conflict. (Declaration of Erick Palafox, ¶¶ 4-9.) Chapman’s counsel initially indicated that they would provide alternative dates for his deposition. (*Id.* at ¶ 10.) However, shortly after this representation, they indicated that they wanted to avoid having Chapman’s deposition taken due to his age and his intent to consent liability. (*Id.* at ¶¶ 11 and 13.) Wendy rejected Chapman’s attempt to not have his deposition taken. (*Id.* at ¶ 12.) The parties exchanged emails and spoke over the telephone regarding this issue but could not resolve this dispute. (*Id.* at ¶¶ 13-16.)

Chapman has provided no evidence that he is unable to sit for his deposition. While Chapman is 88 years old, accommodations can be made if he needs them – like a remote deposition or frequent breaks during deposition. His age alone is no reason to preclude his deposition from going forward. Chapman also argues that his deposition is not necessary because he intends to consent to liability. He points to his responses to requests for admission to support this assertion. While Chapman responds to requests indicating that he “admits responsibility for the ACCIDENT,” he also fails to deny requests that pertain to Wendy’s liability or fault for the accident. When asked to admit that Wendy did nothing to cause the accident, Chapman responds that he lacks sufficient information and knowledge to admit or deny this request. He responds in the same manner to requests asking him to admit that Wendy was not comparatively negligent. Due to this, it does not appear that Chapman is affirmatively admitting to liability for the accident.

Additionally, this lawsuit is not entirely based on the accident. It is also based on allegations of fraud against Abebe and State Farm for misrepresentations made that allegedly pertain to Abebe’s communications with Chapman. (Complaint, ¶¶ 65 and 74.) Chapman appears to contend that a motion to sever could impact the fraud allegations. While a motion to sever has been filed and is pending, it is brought under CCP § 1048(b), which allows for separate trials of causes of action asserted in a complaint. It would have no impact on discovery.

Wendy seeks sanctions against Chapman. Under CCP § 2025.450(g)(1), if a motion to compel a deposition is granted the court must impose sanctions unless doing so is unjust or the opposing party acted with substantial justification.

Motion to Compel Deposition of Defendant William Chapman GRANTED.

Defendant to be deposed within 20 days of this order.

Sanctions in the amount of \$1,323 awarded (2.5 hours at \$500/hour + \$73 filing fee), payable in 30 days to Plaintiffs’ attorney.

9.

CASE #	CASE NAME	HEARING NAME
CVPS2509844	CORTEZ VS CHAPMAN	MOTION TO SEVER ON COMPLAINT OF WENDY ALEJANDRA CORTEZ

Tentative Ruling: No tentative ruling. Motion continued to 7.13.26 to be heard with other motion and CMC calendared for that date.